

**SUBSTITUTE FOR
HOUSE BILL NO. 5321**

A bill to restrict the operation of unmanned vehicles by creating a state unmanned vehicle restricted zone database; to provide for the powers and duties of certain state governmental officers and entities; and to prescribe penalties.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "state unmanned vehicle
2 restricted zone act".

3 Sec. 3. As used in this act:

4 (a) "Critical infrastructure" means that term as defined in
5 section 2 of the cyber civilian corps act, 2017 PA 132, MCL 18.222.

6 (b) "Database" means the unmanned vehicle restricted zone
7 database created under section 5.

8 (c) "Department" means the state transportation department.



(d) "Restricted zone" means a flight path, takeoff or landing zone, or any other restricted area.

(e) "Unmanned aircraft" means that term as defined in section 3 of the unmanned aircraft systems act, 2016 PA 436, MCL 259.303.

(f) "Unmanned vehicle" means any of the following:

(i) An unmanned aircraft.

(ii) An unmanned ground vehicle.

(iii) An unmanned watercraft or submersible.

Sec. 5. (1) The department shall create and maintain a statewide unmanned vehicle restricted zone database that lists restricted zones in which an unmanned vehicle must not be operated. All of the following apply to the database:

(a) The database must be publicly accessible on a website operated by the department.

(b) The database must, to the maximum extent possible, be made compatible with unmanned vehicle hardware and software.

(c) The publicly accessible database must not identify the critical infrastructure or key facilities within a restricted zone.

(2) The department shall determine restricted zones in this state. A restricted zone may include any of the following, as determined by the department:

(a) State-owned property or critical infrastructure.

(b) Local-government-owned property or critical infrastructure.

(c) Privately owned critical infrastructure.

(d) A key facility, as defined in section 552c of the Michigan penal code, 1931 PA 328, MCL 750.552c.

(3) The department shall contract for, purchase, or develop a mobile phone application that an individual must use when operating



1 an unmanned vehicle. The mobile phone application must integrate
2 the database and provide notice to the operator of an unmanned
3 vehicle when that unmanned vehicle is approaching or is violating a
4 restricted zone. The mobile phone application must allow exceptions
5 for operators of authorized unmanned vehicles to whom section 7
6 does not apply as described in subsection (4).

7 (4) A restricted zone does not apply to either of the
8 following:

9 (a) A person authorized to access privately owned critical
10 infrastructure or a key facility operating an unmanned vehicle for
11 the purpose of inspecting, maintaining, repairing, constructing, or
12 otherwise working on that critical infrastructure or key facility.

13 (b) A person who operates an unmanned vehicle in a restricted
14 zone with the consent of the applicable owner or operator of the
15 property, critical infrastructure, or key facility for which the
16 restricted zone is designated.

17 Sec. 7. (1) Except as otherwise provided in section 5(4), an
18 individual shall not operate an unmanned vehicle if the unmanned
19 vehicle is in a restricted zone.

20 (2) An individual who violates subsection (1) is guilty of a
21 felony punishable by imprisonment for not more than 4 years or a
22 fine of not more than \$2,500.00, or both.

23 Sec. 9. This act applies only to the extent that this act is
24 not preempted by federal law.